

does not identify the employee in question (Wally is not alleged to be an employee) or identify any negligence by RCOC

Eleventh COA (whistleblower retaliation): Assuming that this cause of action applies to all defendants, the bare allegation that “plaintiff’s reported illegal conduct, and Defendants retaliated by taking adverse employment action” is not sufficient. The complaint must allege what illegal conduct she reported, and the action that was taken against her.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, “it has long been the rule that a trial court’s denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

RCOC’s demurrer is sustained, with leave to amend.

11. 9:00 AM CASE NUMBER: C25-01794
CASE NAME: AFONSO INFANTE VS. BRIAN SKARBEK
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND QUASH SERVICE**
FILED BY: SKARBEK, BRIAN
TENTATIVE RULING:

Defendants Brian Skarbek, White Rose Process Service, Inc., Luciano Caro and Martin Garcia’s motion to set aside the default is granted. Further, Defendants’ motion to quash service is granted.

Plaintiff Afonso Infante sued the Defendants for various torts related to Defendants work in an unlawful detainer case filed against Plaintiff. Plaintiff filed his complaint on June 25, 2025. Plaintiff filed proofs of service, showing that the Defendants were served by personal service on June 27, 2025 at 100 Saratoga Avenue, Suite 200. (See Proofs of Service, filed 7/28/25.) Plaintiff obtained a default against the Defendants on August 5, 2025. Defendants file this motion to set aside the default on November 12, 2025.

Defendants bring this motion under Code of Civil Procedure sections 418.10 and 473.5.

Section 473.5(a) allows a party to file a motion to set aside a default “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action”. The motion must

be filed no later than “the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc. § 473.5(a).)

Section 418.10 allows a defendant to file a motion “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10(a)(1).) A motion to set aside filed under section 473 or 473.5 may be filed with a motion to quash service of summons as was done in this case.

The Court may grant a motion to set aside under section 473.5 where it finds that “the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect”. (Code Civ. Proc. § 473.5(c); see *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) “ ‘[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute [to establish personal jurisdiction] is void.’ [Citation.]” (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1227.) Where the evidence shows that there is a false proof of service of the summons, that may constitute both extrinsic fraud and mistake, which gives the court inherent power to set aside the default. (*Id.* at 1229.) Finally, “[u]nder section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citation.]” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

Here, Defendants present evidence that the service on June 27, 2025 at 100 Saratoga Avenue, Suite 200 did not occur. They provide declarations from the two employees who were working at the front desk that day and both state that no one came in to serve papers. (Jalalian Dec. ¶¶3-5; Su’a Dec. ¶¶3-5.) The individual defendants also state that they were not in the office at that day and time, and have not been served with the summons in this case. (Skarbeck Dec. ¶¶2-4; Caro Dec. ¶¶3-4; Garcia Dec. ¶¶3-4; White Dec. ¶¶4-5.) Finally, Defendants provide a declaration from the process server listed on the proofs of service, Donald Schlipp, and he states that he did not sign those proofs of service and has no record of serving the defendants in this case. (Schlipp dec. ¶¶5-7.)

Plaintiff opposes this motion, stating that he hired Schlipp and received the proofs of service that he filed. Plaintiff insists that he hired Schlipp and did not forge the proofs of service. (Infante dec.) Plaintiff acknowledges that he was not at 100 Saratoga Avenue on June 27 and thus, he lacks personal knowledge regarding what occurred at 100 Saratoga Avenue on June 27.

The default here was taken based upon proofs of service that were signed by Donald Schlipp. Schlipp has now provided the Court with a declaration refuting those proofs of service, that alone is grounds to grant this motion and quash service. Plaintiff’s declaration contesting Schlipp’s declaration does not change the outcome here because the proofs of service are based upon Schlipp’s statements regarding service and Schlipp now states that he never served the Defendants in this case.

Further, even if the Court accepted the proofs of service. Service by a registered process server provides a presumption of service (Evidence Code section 647) and here, Defendants have presented sufficient evidence to rebut that presumption. Thus, even if the Court accepts the proofs of service, there are still grounds to grant this motion and quash service.

Defendants' request to present oral testimony at the hearing is denied as unnecessary.

Finally, the Court notes that there is a serious conflict between the proofs of service showing that Schlipp served the defendants, which Plaintiff claims he received from Schlipp, and Schlipp's declaration stating that he did not sign those documents and did not give them to Plaintiff. The Court need not resolve this conflict to decide this motion because whether or not Plaintiff or Schlipp is incorrect in their statement of what occurred, the current evidence before the Court is that Defendants were not served in this case.

12. 9:00 AM CASE NUMBER: C25-01983
CASE NAME: KURT VOSS VS. GREGORY GOMES
***MOTION/PETITION TO COMPEL ARBITRATION MOVED FROM C24-02149**
FILED BY: GOMES, GREGORY
TENTATIVE RULING:

Defendant, Gregory Gomes, moves the Court under the California Arbitration Act ("CAA") to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Gomes has established an enforceable arbitration agreement exists that would cover the dispute here, the motion is **granted**. Parties shall submit the dispute to arbitration and the case is stayed pending the outcome.

A status conference is set for 8:30 a.m. on August 26, 2026, to update the Court regarding the arbitration proceedings.

I. Background

Plaintiffs, Kurt Voss and Cathy Huang, allege that their properties (160 Valley Hill Drive and 210 Valley Hill Drive in Moraga, California, respectively) are in a remote area not served by any water district requiring them to rely on the Valley Hill Water System. The Valley Hill Water System, a private system of wells, springs, storage tanks, and water lines provides potable and emergency water to their properties and the properties of certain neighbors.

Plaintiffs enumerate various components relevant to their allegations, including (1) the Turre/Mitchell Bore, (2) the Turre Spring, (3) the Turre Well, (4) two Community Tanks, (5) pipelines connecting various other components, and (6) the Common Line, which connects the Community Tanks to a parcel owned by the Chimnis (nonparties).

Plaintiffs filed this action on July 9, 2025, alleging that defendant Gomes, on whose property various of the above system components are located, has repeatedly damaged the system and prevented plaintiffs from performing necessary repairs. Plaintiffs allege eleven causes of action: (1) Breach of Express Easements; (2) Equitable Easement; (3) Breach of Contract; (4) Negligence; (5) Nuisance; (6) Trespass; (7) Trespass to Chattels; (8) Violation of Civil Code, § 845; (9) Violation of Cal. Const., Art. X, § 2, and Water Code, § 100; (10) Permanent Injunction; and (11) Declaratory Relief. Plaintiffs obtained a preliminary injunction enjoining Gomes from diverting water, obstructing easements, damaging the system, etc.

In response, defendant filed this motion to compel arbitration. The motion invokes the arbitration provision found in paragraph 17 of the Water Rights Agreement, which is attached to the complaint.